



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

APR 18 2002

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 11863
(FOURTH REVISION)

EXPIRATION DATE: November 30, 2003

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Carrier Corporation
dba United Technologies Carrier
Syracuse, NY
2. PURPOSE AND LIMITATIONS:
 - a. This exemption authorizes the manufacture, mark, sale and use of refrigerating machines to be transported in commerce containing up to 20 kg (44 pounds) of Division 2.2 non-flammable, non-toxic refrigerant gases. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 172, Subpart D, marking requirements; Part 172, Subpart C, shipping papers, except when offered for shipment by air; § 173.307(a)(4) in that the quantity of refrigerant exempted from Subchapter C requirements is increased to 20 kg (44 pounds).
5. BASIS: This exemption is based on the application of Carrier Corporation, dated December 4, 2001 submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Material Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Refrigerating machine, containing non-flammable, nontoxic liquefied gas	2.2	UN2857	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Authorized packagings are non-DOT specification containers described as refrigerating machines meeting all the requirements of § 173.306(e). The amount of nontoxic, non-flammable gas contained in these machines must not be more than 20 kg (44 pounds). Refrigerating machines transported under this exemption must conform to the provisions of Underwriters Laboratory Standard UL-250.

b. OPERATIONAL CONTROLS - The pressure in the refrigerating machine and components thereof may not exceed 28 Bar (406 psig) at 55°C (131°F). Refrigerating machine components including pressurized tubing must be designed and manufactured with a 3:1 safety factor based on the working pressure.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this exemption for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this exemption.

b. A person who is not a holder of this exemption, but receives a package covered by this exemption, may reoffer it for transportation provided no modification or change is made to the package or its contents and it is offered for transportation in conformance with this exemption and the HMR.

c. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

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- d. A current copy of this exemption must be maintained at each facility where the package is manufactured under this exemption. It must be made available to a DOT representative upon request.
- e. MARKING - All marking requirements in 49 CFR 172 Subpart D are waived.
- f. SHIPPING PAPERS - Except for air shipments, all shipping paper requirements are waived. Shipping papers for air shipments must include this exemption number.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

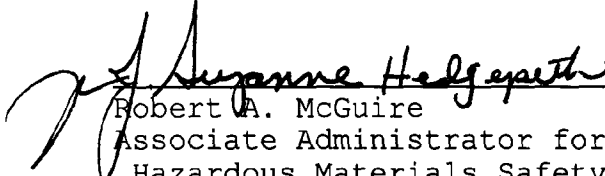
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in

writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued in Washington, D.C.


Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: KFW